

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

COMPLAINT No: CC006000000055712

Mr. Avinash Thakare

Versus

M/s. Nirmal Developers

..... Complainant

..... Respondent.

MahaRERA Registration No. **P51800011870**

Coram: Hon'ble Dr. Vijay Satbir Singh, Member 1

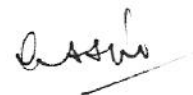
Adv. Ramakant Patil appeared for the complainant.

Mr. Rohit Chavan appeared for the respondent.

ORDER

(12th November, 2018)

1. The complainant has filed this complaint seeking directions from MahaRERA to the respondent to refund the booking amount paid by him for booking of his flat in the respondent's project known as "**Olympia A & B**" bearing MahaRERA Registration No. **P51800011870** at Mulund (West).
2. This matter was heard finally on 8th October, 2018 and same was closed for order. In the present case, the complainant has argued that he has booked the said flat in the respondent's project and paid an amount 20% out of the total cost of the said flat. However, till date the respondent has not started construction on site and therefore, he lost interest in the said project. He had requested the respondent for the refund of the booking amount. But, till date the amount has not been refunded.
3. The respondent disputed the claim of the complainant and argued that the present complaint is liable to be dismissed on grounds of principles of



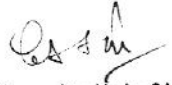
was

res judicata. Since earlier complaint filed by the complainant is dismissed on 5th May, 2018 and hence, the same is not maintainable. The respondent further argued that the complainant has suppressed the material fact from the record of MahaRERA that he has already received an amount of Rs.12 Lakhs out of total amount of Rs.15 Lakhs and as on date, an amount of Rs.13.74 Lakhs was outstanding for which the cheque issued by the respondent got dishonoured. Hence the complainant has already filed 5 cases before Judicial Magistrate, JMFC under the provisions of Negotiable Instruments Act and the said complaints are pending before the appropriate forums. The respondent, therefore, argued that the complainant is involved in Forum Shopping and therefore requested to dismiss this complaint. However, without prejudice the respondent has submitted an undertaking on record of MahaRERA for refund of the remaining amount to the complainant.

4. The MahaRERA has examined the arguments advanced by both the parties as well as the record. In the present case, it appears that the earlier complaint filed by the complainant was dismissed for want of prosecution. As the said matter was not decided on merits, the contention of the respondent that the principles of res judicata would apply in the present case cannot be accepted. In this case there is some balance amount which is required to be paid to the complainant by the respondent for which the respondent has shown his willingness to refund the same. The MahaRERA feels that in view of the said statement made by the respondent, nothing survives in the complaint.
5. With regard to the claim of the complainant for interest under section 18 of the RERA Act, the MahaRERA feels that there is no registered agreement for sale executed between both the parties which prescribes

the date of possession and therefore, since there is no violation of section 18 of the RERA Act, the complainant is not entitled to seek any relief under section 18 of the RERA Act.

6. In view of the above facts and in compliance of principles of natural justice, the respondent is directed to refund the remaining amount to the complainant within a period of three months from the date of this order.
7. With these directions, the complaint stands disposed of.


(Dr. Vijay Satbir Singh)
Member-1/MahaRERA